DUTEE CHAND, *27*
Athlete (right)

MONALISA DAS, *23*
IT professional

Dutee hails from Chakagopal village in Odisha, while Monalisa is from nearby Jajpur. They now live together in Bhubaneswar

'SECTION 377 REPEAL GAVE ME STRENGTH'

Sprinter Dutee Chand, a two-time Olympian and 100m national record holder, made headlines in 2019 when she opened up about her sexuality and became the first openly lesbian athlete in the country. That was two years after she fell in love with Monalisa Das, whom she had first met at a village festival. There was some resentment from the families initially, but what Dutee was more worried about was whether her sexual orientation would affect her sports career.

It was the 2018 Supreme Court judgment decriminalising homosexuality that gave her the courage to talk openly. But what she still didn't have, like many others, was the right to be legally wedded to the love of her life. The couple is reminded about the lack of legal protection at almost every step of their lives. "We live together, but if something happens to me tomorrow, Monalisa cannot claim a single penny out of my property.... If we have to adopt a child, we cannot become parents at the same time under the current law," says Dutee.

> **"In India, you need a certificate for everything you do. Even your birth and death have to be recognised by authorities. We need one for same-sex marriage too"**
>
> **– DUTEE CHAND**

Ball in the Apex Court

The Supreme Court now has the unenviable task of adjudicating these diverse opinions and stands. During the hearing, the apex court has said that it is proceeding on an "incremental canvas" in the case, though Sibal has said that the court should go into everything or nothing and not examine the issue "piecemeal", leaving confusion in its wake. Advocate Menaka Guruswamy and Arundhati Katju, representing the litigants, have also pointed out that anything short of a full marriage will force them to approach the court again and again for redressal of individual discriminations as most "legal rights flow from blood relationships and full marriages".

However, the court doesn't "want to go for an all-or-broke approach". CJI Chandrachud clarified that the hearing's scope will be limited to developing a notion of a "civil union" that finds legal recognition under the SMA and leave it to the legislature and society to evolve greater acceptance in the future. In fact, the court has suggested labels like "contract" and "partnership" rather than "marriage" to describe same-sex unions. A 'civil union' refers to the legal status whereby same-sex couples are allowed certain rights and responsibilities normally conferred upon married couples. Often and with some exceptions, civil unions can provide couples the same kinds of benefits and protections that marriages do.

Admitting that the question of same-sex marriages cannot be treated in isolation as it has linkages all around, the Supreme Court said it was seeking to play "facilitator" to push the government into taking administrative steps to ease "barriers" and address the day-to-day human concerns that cohabiting same-sex partners confront. In response, the Centre told the apex court on May 3 that it will form a committee headed by the cabinet secretary to address the "human concerns" of same-sex couples without recognising their relationship as a marriage. When Guruswamy pointed out that marriage is mandatory for things like pension and provident fund, Mehta retorted saying that this issue could be solved by a little change in the provision—the nominee could be a family member or anyone else the retiring person chooses. "Sometimes the solutions are simpler than the problems," he said.

However, to reach such simpler solutions, the three pillars of democracy—the executive, the legislature and the judiciary—need to be on the same page in their interpretation of the problem. Encouragingly, what began as a confrontation between the judiciary and the Union government is now veering towards attempts to find a middle path. Most petitioners believe that this is the most pragmatic first step towards a historic change in future—the acceptance that same-sex couples face discrimination and deserve certain rights to live their lives with dignity. As 34-year-lawyer Udit Sood, one of the litigants, says: "The most important part is to be told that we are not inferior, that our love is no less worthy. That's the declaration we want." The onus is now on the Supreme Court to find a balanced solution. ■

-with Shelly Anand